



File No: EXP202310204

RESOLUTION OF TERMINATION OF THE PROCEDURE FOR

RECOGNITION

OF RESPONSIBILITY AND

VOLUNTARY PAYMENT

Of the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On February 21, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against A.A.A. (hereinafter, A.A.A.), through the agreement transcribed below:

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File No: EXP202310204

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On June 10, 2023, a complaint was filed with the Spanish Agency for Data Protection for a possible infringement attributable to A.A.A. with NIF ***NIF.1 (hereinafter, A.A.A.).

The facts brought to the attention of this authority are as follows:

The complainant states that in the second half of May 2023, their legal representative requested an in-person appointment at the offices of the Ministry of Finance and European Financing of San Fernando (***LOCALIDAD.1) to submit the self-assessment related to the inheritance tax arising from the death of their father.

On June 3, 2023, the complainant's son communicated via video call through WhatsApp with his nephew and sister, informing them that he was going to submit the appropriate self-assessment, to which his nephew replied that he had already submitted his self-assessment through the lawyer of the "Mapfre Company" of the deceased's insurance.

Subsequently, at 12:21 hours on the same day, via WhatsApp, his nephew sent his son a document titled "***DOCUMENTO.1" which contains the self-assessment submitted electronically on May 3, 2023, by A.A.A.

According to the complainant, A.A.A. lacks their authorization for representation, as they neither know them nor have granted them power of representation and/or professional mandate.

These circumstances, combined with the existence of errors, will be used by the complainant to request the annulment of the submitted self-assessment.

Along with the complaint, the following documents were submitted:

- Model 650 of the inheritance and donations tax for acquisitions mortis causa submitted by A.A.A. on behalf of the complainant due to the death of their father.
- Family Multi-Insurance Policy. Funeral Services Provision.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to A.A.A. for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

On July 25, 2023, the complaint filed by the complainant was sent to A.A.A. by postal mail, to the address provided by A.A.A. as the submitter of the self-assessment of the inheritance tax on behalf of the complainant.

The file contains a certificate of impossibility of delivery of the forwarding, as it was returned to the sender due to being unclaimed (not picked up at the office), issued by the postal company Correos, after attempts to notify it twice on August 9 and 10, 2023, with the cause of the impossibility of notification being the absence at the time of the delivery attempts and not having been picked up from the postal office, after a notice was left in A.A.A.'s mailbox.

No response has been received to this forwarding letter.

THIRD: On September 10, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VIII of the LOPDGDD.

On February 12, 2024, the complainant was requested to submit the documents they presented on December 26, 2023, to which access is not permitted. A response was received on the 18th, indicating that for the defense of their interests regarding the self-assessment of the inheritance and donations tax for acquisitions mortis causa of their father submitted by the C/ Jorge Juan, 6 www.aepd.es 28001 – Madrid sedeaepd.gob.es

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The claimant has had to hire a lawyer, a social graduate, and a real estate agent, for which they have had to pay fees, resulting in a financial detriment due to the action of the defendant party presenting the settlement of the aforementioned tax without their consent.

Relevant documentation provided by the claimant:

- Professional Engagement Sheet for Lawyer and Fees, with said fees amounting to ***AMOUNT.1
- Professional Engagement Sheet for Real Estate Agency and Remuneration, with the fees for these services amounting to ***AMOUNT.2.
- Fees for Social Graduate, with the bill for these amounting to ***AMOUNT.3.

On May 29, 2024, the claimant submitted a document stating that "for the knowledge of the AEPD, the resolution of the Andalusian treasury is attached, which clearly establishes that both lawyer B.B.B. and C.C.C. used their personal data without their consent."

Relevant documentation provided by the claimant:

- Resolution from the Provincial Management of ***LOCALITY.1 of the Tax Agency of Andalusia from the Ministry of Economy, Finance, and European Funds, issued in case number ***REFERENCE.1, in which it is agreed to "accept the request submitted (by the claimant), recognizing that the presenter (defendant party) did not have representation granted to submit the self-assessment in the name of the interested party (claimant)."

On May 31, 2024, the defendant party was requested to provide information on the following points:

- "1.- A detailed report on why they proceeded without the claimant's consent to formulate the self-assessment corresponding to the taxes derived from the death of their father.
- 2.- Identification of how they obtained the personal data of the claimant, with explicit mention of the personal data of the claimant that they hold. And identification of who was provided with this data.
- 3.- Exact identification of all public or private entities to which they have directed writings and/or documents in their representation of the claimant without their authorization, if applicable.
- 4.- Submission of written documents signed by the claimant in which they have been informed in writing clearly and unequivocally of the treatments that would be carried out with their data and for what purposes."

It is noted that the electronic notification of the request has expired due to the expiration of the established deadline for appearance, as of 11/06/24 00:00.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU)

2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

In accordance with Article 64 of the LOPDGDD, and considering the characteristics of the alleged infringement committed, a sanctioning procedure is initiated.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon expiration of this period, it will lapse, and consequently, the proceedings will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

III

Preliminary Issues

Article 4.1) of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

Article 4.2) of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether or not by automated means."

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by automated or non-automated procedures, such as collection, recording, organization, structuring, preservation, adaptation or modification, extraction, consultation, use, communication by transmission, dissemination, or any other form of enabling access, comparison or interconnection, limitation, suppression, or destruction."

Article 4.7) of the GDPR defines the "data controller" or "controller" as: "the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the data controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States." In turn, Article 4.8) of the GDPR defines the "data processor" or "processor" as the natural or legal person, public authority, service, or other body that processes personal data on behalf of the data controller.

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, given that A.A.A. carries out, among other processes, the collection and preservation of personal data of natural persons: name and surname, ID number, date of birth, and email address, in addition to all necessary data to carry out the settlement of the disputed Inheritance Tax.

A.A.A. carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

IV

Unfulfilled Obligation

A.A.A. is accused of committing an infringement for violating Article 6 of the GDPR, "Lawfulness of

processing," which states in its paragraph 1 the circumstances under which the processing of third-party data is considered lawful:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child. The provisions of paragraph f) of the first paragraph shall not apply to...

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application to the processing carried out by public authorities in the exercise of their functions."

It is important to note that Article 4.1 of the GDPR defines "personal data" as "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;" In this case, it is evidenced in the Rectification Resolution of Self-Assessment of the Tax Agency of Andalusia - Ministry of Economy, Finance and European Funds - Provincial Management in ***LOCALITY.1 dated May 15, 2024, that in the third factual background, the following is stated:

"(...)"

Thus, it has been established that A.A.A. did not have the representation granted by the claiming party to submit on their behalf the inheritance tax settlement of their father (Resolution of the Provincial Management of ***LOCALITY.1 of the Tax Agency of Andalusia of the Ministry of Economy, Finance and European Funds, arising from file number ***REFERENCE.1).

It is considered that the claimed party violated Article 6.1 of the GDPR, as it processed the personal data of the claiming party (name, surname, national identity document, address) without legal justification, without having demonstrated that it had a legal basis for the collection and subsequent processing of their personal data.

Consequently, it has carried out the processing of personal data without having demonstrated that it has the legal authorization to do so.

In this regard, and this is essential, A.A.A. does not demonstrate the legitimacy for the processing of the data of the claiming party.

It should be noted that the claimed party has not responded to this Agency, in response to the information request made on July 25, 2023, and May 31, 2024.

The aforementioned Article 6.1 of the GDPR establishes that the processing of personal data shall only be lawful if it is based on one of the legal bases provided for in that article. These include the consent of the data subject, the performance of a contract, compliance with a legal obligation, protection of vital interests, public interest, or legitimate interests of the data controller, provided that the specific requirements for each case are met. Consequently, any processing of personal data that is not covered by one of these legal bases must be considered unlawful, lacking legitimacy to be carried out.

Furthermore, in cases where the consent of the data subject is required as a legal basis for the processing of personal data, it is necessary to ensure that such consent is given freely, specifically,

informed, and unequivocally, as

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as established in Article 4.11 of the GDPR. To comply with these requirements, it is essential that the data controller implements effective verification mechanisms and ensures that they are observed, thereby ensuring that the person granting consent is indeed the data subject of the personal data being processed.

In this regard, Recital 40 of the GDPR states:

“(40) For the processing to be lawful, personal data must be processed with the consent of the data subject or on some other legitimate basis laid down by law, whether in this Regulation or under the law of the Union or of the Member States to which this Regulation applies, including the necessity of complying with a legal obligation to which the data controller is subject or the necessity of performing a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract.”

V

Classification and Qualification of the Violation

The violation is classified in Article 83.5 of the GDPR, which considers the following as such:

“5. Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9.”

The LOPDGD, for the purposes of the prescription of the violation, qualifies in its Article 72.1 as a very serious violation, with a prescription period of three years in this case, “b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.”

V

Proposal for Sanction

The determination of the sanction to be imposed in this case requires observing the provisions of Articles 83.1 and 2 of the GDPR, which respectively state the following:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this Article for the violations of this Regulation referred to in paragraphs 4, 9, and 6 is, in each individual case, effective, proportionate, and dissuasive.”

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding to impose an administrative fine and its amount in each individual case, due regard shall be given to:

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a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects;

d) the degree of responsibility of the data controller or processor, considering the technical or organizational measures they have applied under Articles 25 and 32;

e) any previous infringement committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate any possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;
h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
i) when the measures indicated in Article 58(2) have been previously ordered against the data controller or processor in relation to the same matter, the compliance with such measures;
j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42; and
k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”
Within this section, the LOPDGDD provides in its Article 76, titled “Sanctions and corrective measures”:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
 - b) The connection of the infringer's activity with the processing of personal data.
 - c) The benefits obtained as a result of the commission of the infringement.
 - d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
 - e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
 - f) The impact on the rights of minors.
 - g) Having, when not mandatory, a data protection officer.
 - h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.
3. It shall be possible, complementarily or alternatively, to adopt, when appropriate, the remaining corrective measures referred to in Article 83.2 of Regulation (EU) 2016/679.”

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In accordance with the transcribed provisions, and without prejudice to the outcome of the procedure's instruction, it is appropriate to determine the sanction to be imposed on the respondent and set it at the amount of €2,000 for the alleged infringement of Article 6.1) as defined in Article 83.5.a) of the aforementioned GDPR.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against A.A.A., with NIF ***NIF.1, for the alleged infringement of Article 6.1) as defined in Article 83.5.a) of the aforementioned GDPR.

SECOND: TO APPOINT R.R.R. as the instructor and S.S.S. as the secretary, indicating that either of them may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be for the infringement of Article 6.1 of the GDPR, as defined in Article 83.5 a) of the GDPR, the corresponding sanction would be a fine in the amount of €2,000 (two thousand euros) without prejudice to the outcome of the instruction.

FIFTH: TO NOTIFY this agreement to A.A.A., with NIF ***NIF.1, granting a hearing period of ten working days for him/her to make allegations and present any evidence deemed appropriate. In his/her written allegations, he/she must provide his/her NIF and the procedure number that appears in the heading of this document.

In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, he/she may acknowledge his/her responsibility within the period granted for making allegations to this initiation agreement; this will entail a reduction of 20% of the sanction to be imposed in this procedure, equivalent in this case to four hundred euros (€400). With the application of this reduction, the amount of the sanction would be established at one thousand six hundred euros (€1,600), resolving the procedure with the imposition of this sanction.

Similarly, he/she may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, in accordance with the provisions of Article 85.2 LPACAP, which will entail a reduction of 20% of the amount thereof, equivalent in this case to four hundred euros (€400), for the alleged infringement. With the application of this reduction, the amount of the sanction would be established at one thousand six hundred euros (€1,600) and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to make allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be established at one thousand two hundred euros (€1,200).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that he/she opts to proceed with the voluntary payment of either of the amounts indicated above, €1,600 or €1,200, he/she must make it effective by depositing it into account number ES00 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which he/she is entitled. Furthermore, he/she must send the proof of payment to the General Subdirector of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Olga Pérez Sanjuán

The General Subdirector of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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SECOND: On April 16, 2025, A.A.A. proceeded to pay the sanction in the amount of €1,200.00, making use of the two reductions provided for in the previously transcribed initiation agreement, which implies the acknowledgment of responsibility regarding the facts referred to in the initiation agreement and its legal qualification.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU)

2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures," provides as follows:

- "1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. The percentage of reduction provided in this section may be increased by regulation."

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III

Voluntary Payment and Acknowledgment of Responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making the voluntary payment of the proposed sanction, which would imply two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be set at €1,200.00, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

After the notification of the aforementioned initiation agreement, A.A.A. has proceeded to acknowledge responsibility and make the voluntary payment of the sanction, availing themselves of the two reductions provided. In accordance with paragraph 3 of Article 85 LPACAP, the effectiveness of the aforementioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the presumed responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any others arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution. The sum of the aforementioned amounts results in a total amount of €2,000.00.

After A.A.A. has proceeded with the prompt payment and acknowledgment of responsibility, a reduction of 40% of the total mentioned is applied, resulting in a final amount of €1,200.00. The effectiveness of the aforementioned reductions is conditioned, in any case, upon the withdrawal or renunciation of any action or appeal in the administrative route.

SECOND: TO DECLARE the termination of procedure EXP202310204, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO NOTIFY this resolution to A.A.A.

FOURTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility to

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Withdrawal or renunciation of any action or remedy in the administrative pathway, this resolution shall be final in the administrative pathway and fully enforceable from the date of its notification.

In accordance with the provisions of Article 50 of the LOPDGGD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway as stipulated by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the final resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeaepe.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered concluded.

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Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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